

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
DJIGUI SECK,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE
DETECTIVE VINCENT J. FORTINO, Shield No. 4170,
and NYPD POLICE OFFICERS JOHN/JANE DOES
NUMBERS 1-10,Plaintiff designates Bronx
County as the place of trial.Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 13, 2024

Yours, etc.

CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES, PLLC
Attorneys for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026
caitlin@robinandassociates.com

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE VINCENT J. FORTINO, Shield No. 4170, NYPD 44th
Precinct Detective Squad; 2 East 169th Street, Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

DJIGUI SECK,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE
DETECTIVE VINCENT J. FORTINO, Shield No. 4170,
and NYPD POLICE OFFICERS JOHN/JANE DOES
NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants

X

Plaintiff DJIGUI SECK, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 30, 2023, at approximately 10:30 a.m., Plaintiff DJIGUI SECK, while lawfully inside his home, located at 1210 Nelson Avenue in the Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was then unlawfully imprisoned at the NYPD 44th Precinct Police Station and Bronx County Central Bookings until he was arraigned in criminal court, charged with crimes he did not commit, and thereafter remanded to Rikers Island Correctional Facility. In addition, Plaintiff suffered approximately one (1) week of unlawful imprisonment, as well as loss of income. The false charges made against him were dismissed and sealed in their entirety on or around January 22, 2024. Plaintiff was denied the right to due process and a fair trial, as well as his rights under New York State and Federal constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff DJIGUI SECK is a resident of the State of New York.
3. NYPD POLICE DETECTIVE VINCENT J. FORTINO, Shield No. 4170, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE DETECTIVE VINCENT J. FORTINO, Shield No. 4170, was at all times relevant herein, an officer assigned to the NYPD 44th Precinct; his shield number as an officer was 23156, and he has since been promoted to the 44th Precinct Detective Squad.
5. NYPD POLICE DETECTIVE VINCENT J. FORTINO, Shield No. 4170, is being sued in his individual and official capacity.
6. New York City Police Officers John/Jane Does Numbers 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. New York City Police Officers John/Jane Does Numbers 1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
10. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.
11. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on May 22, 2024.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On May 30, 2023, at approximately 10:30 A.M., Plaintiff was lawfully present inside his home, located at 1210 Nelson Avenue in the Bronx, New York, when the defendant police officers unlawfully stopped, questioned, frisked, and falsely arrested Plaintiff without probable cause or legal justification.

16. At the aforementioned time and location, Plaintiff was asleep when he was awakened by a loud banging at his door.

17. Plaintiff answered the door to find two (2) defendant police officers, who informed Plaintiff that they had a warrant for his arrest and needed to take him down to the precinct for questioning; Plaintiff never saw any such warrant, but calmly complied with the officers and got dressed to go with them to the precinct.

18. It was at this point that the Plaintiff was unlawfully arrested by defendant officers, subjecting him to unlawful pat-down search and restraining him with metal handcuffs.

19. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

20. At the time of arrest, surveillance video from Plaintiff's apartment building proved he was home all night and therefore could not have been involved in the shooting incident on or about May 20, 2024

21. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

22. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

23. Plaintiff did not resist arrest.

24. Plaintiff was then transported against his will to the NYPD 44th Precinct, where he was unlawfully searched, photographed, and detained in a holding cell.

25. Defendant officers never interrogated the Plaintiff, nor did they ever inform him of the charges for which he was being detained; upon information and belief, Plaintiff was never Mirandized.

26. Thereafter, the plaintiff was transported to Bronx County Central Bookings where he was again unlawfully searched, fingerprinted, photographed, and detained in a holding cell.

27. The defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime, to wit; Attempted Murder, Robbery, Criminal Possession of a Firearm, and other related charges.

28. On or about May 31, 2023, Plaintiff was arraigned in Bronx County Criminal Court, charged with crimes he did not commit, his bail was set for \$50,000.00, and he was thereafter remanded to Rikers Island Correctional Facility.

29. At his arraignment, Plaintiff was informed by his attorney that he had been indicted for an attempted shooting murder which had occurred in his neighborhood on or about May 20, 2023; Plaintiff vehemently denied any knowledge of or involvement in any such crimes.

30. After approximately six (6) days of imprisonment at Rikers Island Correctional Facility, Plaintiff was able to post bail with aid from his family and was thereafter released on his own recognizance.

31. On or about January 22, 2024, all charges against the plaintiff were dismissed and sealed in their entirety.

32. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, maliciously prosecuting, and denying Plaintiff the right to due process and a fair trial.

33. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, malicious prosecution, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain economic injuries, as well as psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

34. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

35. The individually named police officer defendants while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

36. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, psychological, and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

37. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

38. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

39. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

41. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

42. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

43. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

44. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

45. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

46. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION **Unlawful Search**

49. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

51. Defendants lacked probable cause to search Plaintiff.

52. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Violation of Plaintiff's Fifth and Fourteenth Amendment Rights
Denial of Right to Fair Trial/Due Process

56. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

57. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

58. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

59. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

60. In withholding/creating false evidence against Plaintiff DJIGUI SECK, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free from deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

61. As a result of the foregoing, Plaintiff DJIGUI SECK sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Negligence

65. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

66. Defendants owed a duty of care to Plaintiff.

67. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by seizing and tightly handcuffing him, causing him humiliation, indignity, and psychological and emotional injury.

68. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

69. All of the foregoing occurred without any fault or provocation by Plaintiff.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

73. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

74. The use of excessive force by defendants by, amongst other things, seizing and tightly handcuffing him, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

76. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

77. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

78. Defendants commenced and continued a criminal proceeding against Plaintiff.

79. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for the charges for which he was prosecuted.

80. The prosecution and criminal proceedings were dismissed on the aforementioned dates.

81. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION **Negligent Infliction of Emotional Distress**

84. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

85. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, DJIGUI SECK. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

86. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

90. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

91. By the actions described herein, Defendants engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to Plaintiff.

92. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

95. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

ELEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

96. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 94 with the same force and effect as if more fully set forth at length herein.

97. The City of New York and its employees, servants, and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

98. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

TWELFTH CAUSE OF ACTION

Failure to Intervene

99. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

100. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

101. Defendants failed to intervene to prevent the unlawful conduct described herein.

102. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

103. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

104. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

105. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

107. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

108. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

109. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

110. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining Plaintiff and further causing his detention for approximately one (1) week in total.

111. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION
Individual Defendant Officer's Failure to Intervene in a Violation of
Plaintiff's AC 8-802 Rights

112. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 110 with the same force and effect as if more fully set forth at length herein.

113. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

114. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

115. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

116. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

117. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION
City-Employer's Liability for Defendant Officer's Violation of

Plaintiff's AC 8-802 Rights

118. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 116 with the same force and effect as if more fully set forth at length herein.

119. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

120. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

121. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

122. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

123. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately one (1) week in total.

124. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION**City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

125. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs 1 through 123 with the same force and effect as if more fully set forth at length herein.

126. Defendant Officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

127. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

128. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

129. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

130. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

131. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

132. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION
Violation of Article I, § 12 of the New York State Constitution

133. The Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in paragraphs marked 1 through 131 with the same force and effect as if more fully set forth at length herein.

134. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

135. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

136. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

137. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

138. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff DJIGUI SECK demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 13, 2024

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES, PLLC
Attorneys for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026
caitlin@robinandassociates.com

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE DETECTIVE VINCENT J. FORTINO, Shield No. 4170, NYPD 44th
Precinct Detective Squad; 2 East 169th Street, Bronx, NY 10452

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 13, 2024



CAITLIN ROBIN, ESQ.